THE FAIR COMPETITION TRIBUNAL RULES, 2012

THE FAIR COMPETITION ACT

(CAP. 285)

RULES

(Made under section 89)

THE FAIR COMPETITION TRIBUNAL RULES, 2012

ARRANGEMENT OF RULES

PART I

PRELIMINARY PROVISIONS

1. Citation.
2. Interpretation.

PART II

PROCEDURE FOR APPEALS AND APPLICATIONS

3. Right of appeal.
4. Joinder of parties.
5. Tribunal address for services.
6. Appearance.
7. Language.
8. Time of payment of fees.
9. Commencement of appeal.
10. Application to strike out notice of appeal or notice of cross appeal.
11. Institution of appeal or cross appeal.
12. Power to reject document.
13. Effect of default in instituting appeal.
14. Service of memorandum and record of appeal.
15. Mode and proof of service of documents.
16. Publication of the appeal.
17. Application to intervene.
18. Statement of intervention.
19. Reply to the memorandum of appeal.
20. Signature and sealing of summons etc.
21. Applications.
22. List of authorities and copies of judgment to be referred to.
23. Consolidation.
24. Sittings.
25. Powers of the Registrar.
26. Extension of time.

PART III

HEARINGS AND DECISIONS

27. Notice of hearing and delivery of decisions.
28. Skeleton argument.
29. Quorum.
30. Order of address.
31. Rejection of appeal or application.
32. Proceedings to be conducted in public.
33. Power of the Tribunal to give directions as to procedure.
34. Confidentially.
35. Power to reappraise evidence and to take additional evidence.
36. Evidence by video link.
37. Power to order submission of a report.
38. Power to the tribunal to confirm, reverse or vary orders etc.
39. Decisions to be embodied in orders.
40. Rectification of errors.
41. Procedure on non-appearance.

PART IV

GENERAL PROVISIONS

42. Penalty for obstruction of the Tribunal.
43. Withdrawal of appeal or applications.
44. Settlement of appeal or application out of the Tribunal.
45. Costs.
46. Security for costs.
47. Application of Taxation of Costs Rules GN. No. 515 of 1991.
48. Decision of the Tribunal.
49. Execution of decision of the Tribunal.
50. Review of decision of the Tribunal.
51. Fees.
52. Revocation GN. No. 189 of 2006.

FIRST SCHEDULE

Fees.

SECOND SCHEDULE

Forms

FCT Form A – Notice of appeal.
FCT Form B – Notice of address for service.
FCT Form C – Notice of cross – appeal.
FCT Form D – Memorandum of appeal.
FCT Form E – Proof of service.
FCT Form F – Statement of Intervention.
FCT Form G – Memorandum of Review.

GOVERNMENT NOTICE No. 219 published on 22/6/2012

THE FAIR COMPETITION ACT
(CAP. 285)

RULES

(Made under section 89)

THE FAIR COMPETITION TRIBUNAL RULES, 2012

PART I
PRELIMINARY PROVISIONS

Citation

1. These Rules may be cited as the Fair Competition Tribunal Rules, 2012.

Interpretation

2. In these Rules, unless the context requires otherwise-

"Act" means the Fair Competition Act;

"appellant" means a person who lodges an appeal before the Tribunal;

"applicant" means a person who files an application before the Tribunal; Cap.285

"Chairman" means the Chairman of the Tribunal and includes the Chairman of the Tribunal as constituted for a particular proceeding;

"Code" means the Civil Procedure Code Act;

"Commission" means the Fair Competition Commission established by the Act; Cap.33

"intervene" with its grammatical variations and cognate expressions, means the entry into proceedings by a person who has sufficient interest in the outcome of the proceedings and who has been granted leave to join in the proceedings as a party;

"memorandum of appeal" means a document prescribed under rule 11 of these Rules;

"notice of appeal" means a document lodged with the Tribunal in accordance with rule 9 of these Rules;

"party" in relation to an appeal or application, means an appellant, applicant or a respondent, and includes an authorized officer acting for the party in the appeal or application;

"Public Register" means the public register of the Tribunal as provided for under section 85(4) of the Act;

"Registrar" means the person appointed to be Registrar of the Tribunal under section 86 of the Act;

"Register" means the Register of the Tribunal;

"Registry" means the Registry of the Tribunal;

"Regulatory Body" means the Energy and Water Utilities Regulatory Authority (EWURA), Tanzania Communications Regulatory Authority (TCRA), Surface and Marine Transport Regulatory Authority (SUMATRA) and Tanzania Civil Aviation Authority (TCAA) or any other regulatory body the decision of which is appealable to the Tribunal;

"respondent" means a person against whom an appeal has been lodged or an application has been filed;

"Tribunal" means the Fair Competition Tribunal established under section 83 of the Act.

PART II

PROCEDURE FOR APPEALS AND APPLICATIONS

Right of Appeal

3. A person who is aggrieved by the decision or appealable orders of the Commission or Regulatory Body may appeal to the Tribunal.

Joinder of parties

4. In every appeal, the Commission or Regulatory Body which made the decision appealed against shall, unless the Tribunal directs otherwise, be joined as a respondent.

Tribunal address for service

5. The service of documents on the Tribunal shall be addressed to the Registrar.

Appearances

6.—(1) A party to any proceedings before the Tribunal may appear in person or represented by an advocate, legal representative or an authorized officer.

(2) Notwithstanding sub-rule (1), a person who is not resident in the United Republic shall be represented by an attorney.

Language

7. The language of the Tribunal shall be English or Kiswahili, save for the judgments, orders or decisions of the Tribunal which shall be in English.

Time of payment of fees

8. The fees payable on lodging or filing any document shall be paid at the time when the document is lodged or filed.

Commencement of appeal

9.-(1) A person who intends to appeal to the Tribunal shall lodge with the Tribunal a notice of appeal in five copies for the use of the Tribunal and for each party in the appeal.

(2) The notice of appeal shall be lodged within the time of appeal prescribed in the respective laws establishing the Commission or Regulatory Body.

(3) Every notice of appeal shall-

(a) state whether it is intended to appeal against the whole or part of the decision, and shall, in the case it is intended to appeal against part of the decision, specify the part of the decision complained of;

(b) state the name, postal, physical and service address of the appellant;

(c) state the name and address of the respondent;

(d) be signed and dated by either the appellant in person, his advocate, duly authorized officer or legal representative; and

(e) be substantially in the FORM A specified in the Second Schedule to these Rules.

(4) The appellant shall, not later than seven days after lodging a notice of appeal, serve a copy of the notice on the respondent.

(5) Every person on whom a notice of appeal is served shall, within seven days after service, lodge with the Tribunal and serve on the appellant and every other person named in the notice of appeal-

(a) a notice of address for service; and

(b) in the case the respondent intends to appeal, a notice of cross-appeal.

(6) The notices referred to in sub-rule (5) shall-

(a) in the case of a notice of address for service-

(i) state the postal and physical address of the respondent;

(ii) be signed by the respondent; and

(iii) be substantially in the FORM B specified in the Second schedule to these Rules; and

(b) in the case of a notice of cross-appeal–

(i) state the particulars prescribed under sub-rule (3) of this rule; and

(ii) be substantially in the FORM C specified in the Second Schedule to these Rules.

Application to strike-out notice of appeal or notice of cross-appeal.

10. A person on whom a notice of appeal or notice of cross-appeal is served may, at any time, apply to the Tribunal to strike-out the notice on the ground that no appeal lies or that an essential step in the proceedings has not been taken or has not been taken within the prescribed time.

Institution of appeal or cross appeal

11.–(1) An appeal or cross-appeal shall be instituted within twenty one days of the date when the notice of appeal or cross-appeal was lodged.

(2) In computing the twenty one days prescribed in sub-rule (1), the period of time from which the appellant requests in writing for copies of proceedings and decision of the Commission or Regulatory Body to the date the appellant obtains such copies, shall be excluded:

Provided that the exclusion of the period of time shall not take effect unless the appellant submits to the Tribunal, a copy of the letter requesting for such documents when lodging the notice of appeal.

(3) An appeal shall be instituted by lodging with the Tribunal–

(a) five copies of the memorandum of appeal or cross-appeal for the use of the Tribunal and for each party in the appeal;

(b) five copies of record of appeal or cross-appeal for the use of the Tribunal and for each party in the appeal; and

(c) security for costs where applicable.

(4) A memorandum of appeal or cross-appeal shall be substantially in the FORM D specified in the Second Schedule to these Rules.

(5) The memorandum of appeal or cross-appeal shall-

(a) set out concisely and under distinct heads, without arguments or narrative-

(i) grounds of appeal or cross-appeal, consecutively numbered specifying the points alleged to have been wrongly decided;

(ii) nature of the order sought from the Tribunal; and

(b) be signed and dated by either the appellant in person, his advocate, legal representative or duly authorized officer.

(6) The record of appeal or cross-appeal shall contain pleadings, proceedings and the decision appealed against.

Power to reject document

12.–(1) Where any document lodged or filed does not comply with the requirements of these Rules, or is materially incomplete or lacking clarity, the Registrar shall direct in writing the person who lodged or filed the document to rectify the defects contained in that document within the period of time prescribed by the Registrar, or reject the document where the person does not comply with such direction.

(2) A person who is dissatisfied with the decision of the Registrar rejecting any document may refer the matter to the Chairman for his decision

Effect of default in instituting appeal

13. Where a party who has lodged a notice of appeal or a notice of cross appeal fails to institute an appeal within the prescribed time the notice of appeal or notice of cross-appeal shall be deemed to have been withdrawn and the party may be liable to pay costs.

Service of memorandum and record of appeal

14. The appellant shall, within seven days after lodging the memorandum and record of appeal, serve copies on each respondent.

Mode and proof of service of documents

15.–(1) Where a document is required to be served on any party, the document may be sent by hand, fax, registered post or, with the leave of the Tribunal, by electronic mail or publication.

(2) The proof of service shall be given by affidavit within ten days of lodging the document in the Tribunal, unless the Tribunal directs otherwise.

(3) An affidavit for proof of service shall be substantially in the FORM E specified in the Second Schedule to these Rules.

Publication of the appeal

16.–(1) Within seven days of instituting an appeal, the Registrar shall publish a notice on the Tribunal's website and in any widely circulated newspaper.

(2) The notice referred to in sub-rule (1) shall set out-

(a) that an appeal has been lodged;
(b) the names of the appellant and respondent;
(c) the decision to which the appeal relates;
(d) the particulars of the relief sought;

(e) the summary of the principal grounds relied on; and
(f) the statement which invites any person with sufficient interest to apply to intervene in the proceedings within seven days of publication of the notice.

Application to intervene

17.–(1) A person who has sufficient interest in the outcome of the appeal may, within seven days of the publication of the notice, file an application to the Tribunal to intervene in the proceedings.

(2) The Registrar shall notify the parties to the proceedings of the application to intervene and any party to the proceedings may object the application within seven days of receiving the notice.

(3) An affidavit filed in support of the application to intervene shall state–

(a) concise statement of the matters in issue affecting the intervener; and
(b) party whose position the intervener intends to support.

(4) Where the Tribunal is satisfied that the intervener has sufficient interest it shall grant the application on such terms and conditions as it may deem fit.

Statement of intervention

18.–(1) Where the application to intervene is granted, the intervener shall file a statement of intervention and serve it on the other parties within seven days.

(2) The statement of intervention shall contain the-

(a) facts supporting the intervention;
(b) reliefs sought;
(c) list of documents annexed and
(d) copy of every document which the intervener intends to rely upon.

(3) A statement of intervention shall be substantially in the FORM F specified in the Second Schedule to these Rules.

(4) The parties to the proceedings shall, within seven days of being served with the statement of intervention, file a reply to the statement separately or jointly.

Reply to the memorandum of appeal

19.–(1) Upon being served with the memorandum of appeal and the record of appeal, the respondent shall, within fourteen days, file a reply in five copies for the use of the Tribunal and for each party in the appeal, and serve the copies to each of the other party.

(2) The reply shall contain–

(a) the arguments of facts and law relied upon;

(b) reliefs sought; and

(c) list of documents annexed.

(3) Where a respondent intends to rely upon a preliminary objection to the hearing of an appeal or application, the respondent shall, not less than three days before hearing, issue a notice to the appellant setting out the grounds of the objection and the relevant law or decision intended to be relied upon and shall file five such copies of the notice with the Registrar.

Signature and sealing of summons, etc

20. Every summons, warrant, notice or formal document issued by the Tribunal shall be signed by the Registrar, or in his absence, an officer authorized by the Registrar and shall be affixed with the seal of the Tribunal.

Applications

21.–(1) Save for an application for review under rule 50 of these Rules, any application to the Tribunal shall be made by chamber summons supported by affidavit.

(2) Notwithstanding the provisions of sub-rule (1), the Tribunal may entertain oral applications made in the course of hearing.

(3) A party who is served with a chamber summons and who intends to challenge the application shall lodge an affidavit in reply and serve a copy to the applicant.

(4) The provisions of this rule shall not apply to applications made to the Registrar.

List of authorities and copies of judgment to be referred to

22. A party who intends to rely on the judgment in any reported or unreported case or to quote anything from any book or authority at the hearing of an appeal or application, shall, not less than three days before the hearing of the appeal or application-

(a) lodge with the Registrar five copies of the list containing–

(i) the full citation of the case; or

(ii) in the case of a book, the title of the book, names of authors and edition of the book or authority;

(b) attach extracts of the relevant pages of the case, book or authority; and

(c) serve a copy of the list on the other party.

Consolidation

23. Where two or more proceedings are pending in respect of the same decision, or the same or similar issues, the Tribunal may, on its own motion or upon application by any of the parties, order that the proceedings or any particular issue or matter raised in the proceedings be consolidated or heard together.

Sittings

24. The Tribunal may hold its sittings in such places as it considers appropriate having regard to the just, expeditious and economical conduct of the proceedings.

Powers of the Registrar

25. The Registrar or, in his absence, an officer authorized by the Registrar and approved by the Chairman, shall have powers to-

(a) sign orders of the Tribunal where the Chairman vacates office after pronouncing judgment without signing the order;
(b) certify orders of the Tribunal;
(c) admit or reject applications for execution proceedings in respect of the decisions and orders of the Tribunal;
(d) order that a decision or order of the Tribunal be executed;
(e) issue process for execution of decisions and orders of the Tribunal; and
(f) perform functions and exercise powers of the Taxing Master under Taxation and Remuneration of Advocates Rules within the Tribunal.

Extension of time

26. The Tribunal may, on application by a party, extend the time limited by these Rules or by its decision whether before or after the expiration of that time.

PART III

HEARING AND DECISIONS

Notice of hearing and delivery of decisions

27.–(1) The Registrar shall, within the period of not less than seven days before the hearing, issue to the parties a notice of hearing date:

Provided that the notice may not be necessary where the hearing date was fixed with the consent of the parties.

(2) Where the matter in issue is of an urgent nature, the Tribunal may dispense with the requirements of sub-rule (1).

(3) The notice of the hearing date shall be issued in writing and served to the parties or, where circumstances permit, be communicated to the parties through telephone or other electronic means.

(4) The notice of the date of delivery of decision shall be issued to the parties by the Registrar after the completion of the hearing of parties.

Skeleton argument

28.–(1) For purposes of accelerating the disposal of appeal or cross-appeal, the parties may file skeleton argument in writing at least three days before the hearing date.

(2) The skeleton argument shall not be more than five A4 pages.

(3) The skeleton argument shall contain-

(a) the background of the appeal or application;
(b) issues to be determined by the Tribunal;
(c) points of law to be considered;
(d) submission of facts; and
(e) summary of what the Tribunal is being asked to perform.

(4) For purpose of this rule "skeleton argument" means a document which identifies or outlines, for both parties and the Tribunal, the relevant matters for the Tribunal to consider.

Quorum

29. For purposes of hearing an appeal or application, the Tribunal shall be constituted by not less than three members including the Chairman.

Order of address

30.–(1) The Tribunal shall hear first the appellant or applicant followed by the respondent then the appellant or applicant on rebuttal.

(2) At the hearing of an appeal where notice of a cross-appeal has been given, the Tribunal shall ordinarily hear the appellant first on the appeal followed by the respondent on the appeal and on the cross-appeal, then the appellant in reply on the appeal and on the cross-appeal and finally the respondent in reply on the cross-appeal.

(3) The Tribunal may, on its own motion or upon application by a party, allow a party to present oral or written closing submissions.

Rejection of appeal or application

31.–(1) The Tribunal may, after giving the parties an opportunity to be heard, reject an appeal in whole or in part at any stage of the proceedings where-

(a) the memorandum of appeal or the application discloses no valid grounds;
(b) the appellant or applicant does not have sufficient interest in the decision;

(c) the appellant or applicant fails to comply with any rule, direction or order of the Tribunal; or

(d) the appeal or application is vexatious.

(2) Where the Tribunal rejects an appeal or application it may make any consequential order as it considers appropriate.

Proceedings to be conducted in public

32.-(1) The proceedings of the Tribunal shall be conducted in public unless the Tribunal decides otherwise.

(2) The Tribunal shall adhere to the principles of natural justice and shall avoid formality and technicality of rules of evidence with a view to ensuring just, expeditious and economical handling of the proceedings.

Power of the Tribunal to give directions as to procedure

33. Where it is necessary to make an order for purposes of dealing with any matter for which no provision is made by these Rules or any other written law or better meeting the ends of justice, the Tribunal may, on application or on its own motion, apply the Code.

Confidentiality

34.-(1) Where a party intends that any document lodged or filed be treated confidentially he shall make an application in writing-

(a) at the time of lodging appeal or filing application; and

(b) within four days of getting the knowledge of document, indicating the words or paragraphs for which confidentiality is requested.

(2) The application for confidential treatment of a document shall state specific reasons, and the Tribunal may require the applicant to furnish the Tribunal with a non-confidential version.

(3) In the event of an objection, the Tribunal shall decide the matter after hearing the parties.

Power to reappraise evidence and to take additional evidence

35.-(1) In respect of any appeal, the Tribunal may-

(a) re-appraise the evidence and draw inferences of facts;

(b) in its discretion, take additional evidence or direct that additional evidence be taken by the commission or the relevant regulatory body; or

(c) call any person or expert as witness.

(2) In the event that the Tribunal determines to take additional evidence, such evidence may be oral or by affidavit and the Tribunal shall allow cross-examination.

(3) The parties shall have the right to be present when additional evidence is taken.

Evidence by video link

36. The Tribunal may, upon application by a party, allow a witness to give evidence without being present in the courtroom, through a video link at the cost of the applicant.

Power to order submission of a report

37. In dealing with any appeal or application, the Tribunal may order the Commission or the relevant Regulatory Body to submit a report on an matter relating to the proceedings.

Powers of the Tribunal to confirm, reverse or vary orders etc

38. The Tribunal may, in dealing with any appeal or application-

(a) confirm, reverse or vary the decision of the Commission or the relevant Regulatory Body;

(b) remit the proceedings to the Commission or the relevant Regulatory Body with such directions as the Tribunal considers appropriate;

(c) order the Commission or the relevant Regulatory Body to conduct fresh proceeding; or

(d) make any necessary, incidental or consequential orders.

Decisions to be embodied in orders

39.–(1) Every decision of the Tribunal in appeal or application, other than a decision in application made informally in the course of hearing, shall be embodied in an order.

(2) Every order shall prescribe the date on which the decision was given and the order extracted and shall be signed by the Chairman or the Registrar.

Rectification of errors

40. A clerical or arithmetical error in a judgment or order may be rectified by the Tribunal either on its own motion or on application by an interested person.

Procedure on non-appearance

41.–(1) Where, on a day fixed for hearing, the appellant or applicant does not appear the appeal or application shall be dismissed unless the Tribunal decides otherwise.

(2) Where the appellant or applicant appears and the respondent fails to appear, the appeal or application shall proceed unless the Tribunal decides otherwise.

(3) Where an appeal or application is dismissed or allowed the party in whose absence the appeal or application was dismissed or allowed may, within thirty days of the decision, apply to the Tribunal to restore the appeal or application, if he was prevented by sufficient cause from appearing.

PART IV

GENERAL PROVISIONS

Penalty for obstruction of the Tribunal

42.–(1) Any person who obstructs the Tribunal shall be liable to a fine of not less than one hundred thousand shillings and not exceeding five million shillings as provided for under the Act.

(2) Where a person fails to pay the fine, the fine shall be recovered as a judgment debt under the Code.

With-drawal of appeal or applica-tion

43.–(1) The appellant or applicant may, at any time after instituting an appeal or filing an application, lodge with the Registrar a notice that he does not intend further to prosecute the appeal or application.

(2) Upon receipt of the notice, the Tribunal shall mark the appeal or application withdrawn with or without costs.

Settle-ment of appeal or applica-tion out of the Tribunal

44.–(1) Where all the parties to an appeal or application consent to settle the appeal or application out of the Tribunal, the appellant or applicant shall, within three days from the date of the consent, notify the Tribunal in writing of the consent to settle the appeal or application out of the Tribunal and shall attach with the notice the consent agreement signifying the consent of the parties.

(2) The consent agreement referred to under sub-rule (1) shall be signed by all the parties to an appeal or application and shall set out the-

(a) names of the parties to the appeal or application;
(b) appeal or application number;
(c) declaration of each party to the consent agreement;
(d) terms of the consent agreement; and
(e) date and place in which the consent agreement is concluded.

(3) Upon receipt of the notice and the consent agreement, the Tribunal shall, subject to the terms of the consent agreement, mark the appeal or application settled.

(4) For purposes of these Rules "consent agreement" means a document lodged with the Tribunal signifying the consent of all parties to an appeal or application to settle the appeal or application out of the Tribunal.

Costs

45. The Tribunal may make such orders as to costs as it considers necessary.

Security for costs

46. The Tribunal may, at any time, direct that security for costs be deposited.

Application of the Taxation of Costs Rules GN. No. 515 of 1991

47.—(1) For the purposes of these Rules, the Advocates' Remuneration and Taxation of Costs Rules, 1991 shall apply.

(2) Where a person is aggrieved by the decision of the Taxing Master in any matter relating to taxation filed in the Tribunal, he may refer the matter to the Chairman of the Tribunal who, for purposes of Remuneration and Taxation of Costs Rules, shall sit as a Judge of the High Court.

Decision of the Tribunal

48.—(1) The decision of the Tribunal shall be in writing, dated and signed by all members constituting the panel:

Provided that, where for any reason a member is unable to sign the decision as deliberated and agreed upon by the panel, two members shall sign the decision.

(2) The decision of the Tribunal shall be pronounced in public by the Chairman, any member of the panel or the Registrar on the date fixed for that purpose.

(3) The Tribunal shall indicate in the decision the date on which the decision is delivered.

49. Decisions and orders of the Tribunal shall be enforced and executed by the Tribunal in the same manner as decisions and orders of the High Court in accordance with the Code.

Review of decision of the Tribunal

50.—(1) The Tribunal may, on its own motion or upon application by any party, review its decision or order.

(2) Subject to rule 21(1) of these Rules, an application for review shall be by memorandum of review which shall be substantially in the FORM G specified in the Second Schedule to these Rules.

G.N. No. 219 (contd.)

Fees

51. The fees set out in the First Schedule to these Rules shall be payable in respect of matters and services specified in that Schedule.

Revocation G.N. No. 189 of 2006

52. The Fair Competition Tribunal Rules, 2006 are hereby revoked.

FIRST SCHEDULE

(Under rule 51)

Fees

Part I: Fees in connection with appeals and cross-appeals

1. Upon lodging a notice of appeal or cross appeal– Shs. 30,000/=
2. Upon lodging a record of appeal or cross appeal for each folio or part thereof – Shs. 1,000/= (provided the amount payable does not exceed Shs. 500,000/=)
3. Upon filing a memorandum of appeal or cross-appeal - Shs. 200,000/=
4. Upon filling a reply to the memorandum of appeal or cross-appeal – Shs. 100,000/=

Part II: Fees in connection with applications

1. Upon filing chamber summons – Shs. 50,000/=
2. Upon filling an affidavit or counter affidavit – Shs. 30,000/=

Part III: Fees in connection with Intervention proceedings

1. Upon filing an application of intervention – Shs. 30,000/=
2. Upon lodging statement of intervention – Shs. 150,000/=
3. Upon filing a reply to the statement of intervention – Shs. 50,000/=

Part IV: Fees in connection with documents to be filed

1. Upon filing a list of authorities and copies of judgment – Shs. 20,000/=
2. Upon filing a list of document annexed to the statement of intervention – Shs. 20,000/=
3. Upon filing any other document Shs. 2,000/= per folio provided that the amount payable shall not exceed – Shs. 100,000/=

Part V: Miscellaneous

1. For issuance of summons, warrant or notice of the Tribunal – Shs. 20,000/=
2. For supply of a copy of decision or order of the Tribunal – Shs. 1,000/= per folio (provided that the amount payable shall not exceed – Shs. 300,000/=)
3. For perusing a case file Shs. 20,000/=

SECOND SCHEDULE

Forms

IN THE FAIR COMPETITION TRIBUNAL

FCT FORM A
(Rule 9(3))

In the matter of an intended appeal No.....of 20.....
Between.....Appellant(s)
And
.....
.....
.....Respondent(s)
(Appeal from the decision of ..... (the Commission/ Regulatory Body)
In Order/Determination/Decision No.....of 20.....
Dated.....20.....

NOTICE OF APPEAL

TAKE NOTICE that.....being dissatisfied with the decision of.....(the Commission/Regulatory Body) given at.....on the.....day of.....20..... intends to appeal to the Tribunal against the whole decision or part thereof namely .....
The address for service of the Appellant is .....
.....

It is intended to serve copies of this notice on:
.....
.....

Dated this..... day of.....20.....
Signed: ..... Appellant
Lodged in the Registry of the Tribunal at .....this..... day of.....20.....

.....
Registrar

Copies to be served upon:
.....
.....

Drawn and filed by:
.....
.....

IN THE FAIR COMPETITION TRIBUNAL

FCT FORM B
(Rule 9(6))

In the matter of an intended appeal No.....of 20.....

Between.....Appellant(s)

And

.....

.....

.....Respondent(s)

(Appeal from the decision of..... (the Commission/ Regulatory Body)

In Order/ Determination/Decision No.....of 20.....

Dated.....20.....

NOTICE OF ADDRESS FOR SERVICE

TAKE NOTICE that the address for service of the Respondent(s) served with notice of appeal is .....

.....

.....

Dated this ..... day of ..... 20 .....

Signed: ..... Respondent(s)

Lodged in the Registry of the Tribunal at this ..... day of ..... 20.....

.....
Registrar

Copies to be served upon:

.....

.....

Drawn and filed by:

.....

.....

G.N. No. 219 (contd.)

IN THE FAIR COMPETITION TRIBUNAL

FCT FORM C
(Rule 9(6))

In the matter of an intended appeal No.....of 20 .....
Between.....Appellant(s)
And
.....
.....
.....Respondent(s)
(Appeal from the decision of..... (the Commission/ Regulatory Body)
In Order/ Determination/Decision No.....of 20 .....
Dated.....20.....

NOTICE OF CROSS-APPEAL

TAKE NOTICE that on the hearing of this appeal, the Respondent will contend that the decision be varied or reversed to the extent and in the manner and on the grounds that:

1. .....
2. .....
etc.

It is proposed to ask the Tribunal for order/orders.....
.....

It is intended to serve copies of this notice on:
.....
.....
.....

Dated this.....day of.....20.....
Signed:.....
.....Respondent(s)

Lodged in the Registry of the Tribunal at .....this.....day of .....20...

.....
Registrar

Copies to be served upon:
.....
.....

Drawn and filed by:
.....
.....

IN THE FAIR COMPETITION TRIBUNAL

FCT FORM D
(Rule 11(2))

In the matter of an appeal No.....of 20.....

Between.....Appellant(s)

And

.....

.....

.....Respondent(s)

(Appeal from the decision of..... (the Commission/ Regulatory Body)

In Order/ Determination/Decision No.....of 20 .....

Dated.....20 .....

MEMORANDUM OF APPEAL

.....appeals to the Tribunal against the whole decision or part thereof on the grounds that:

1. .....
2. .....(etc)

It is proposed to ask the Tribunal for order/orders

.....

.....

.....

Signed:.....Appellant(s)

Lodged in the Registry of the Tribunal at .....this.....day of .....20.....

.....
Registrar

Copies to be served upon:

.....

.....

Drawn and filed by:

.....

.....

G.N. No. 219 (contd.)

IN THE FAIR COMPETITION TRIBUNAL

FCT FORM E
(Rule 15(3))

In the matter of an appeal No.....of 20.....
Between.....Appellant(s)
And
.....
.....
.....Respondent(s)
(Appeal from the decision of..... (the Commission/ Regulatory Body)
In Order/ Determination/Decision No.....of 20.....
Dated.....20.....

PROOF OF SERVICE

I, ... do solemnly swear /affirm that;

1. I am the ( ) appellant/( ) respondent/( ) intervener/( ) advocate for.....
2. I filed the following documents in the Registry of the Tribunal
   .....
   .....
3. I have served the filed documents through ( )hand/( )fax/( )registered post/( ) electronic mail /( )publication on:
   .....
   .....

Dated at ..... this ..... day of .....20.....

.....
Deponent

I, ... hereby verify that what is stated hereinabove is true to the best of my knowledge.
Verified at ..... this.....day of .....20.....

SWORN /AFFIRMED at .....by the said who is personally known to me /introduced to me by .....the latter being known to me personally this .... day of .....20....

.....
Deponent

BEFORE ME:

.....
COMMISSIONER FOR OATHS

Lodged in the Registry of the Tribunal at .....this.....day of ..... 20 .....

.....
Registrar

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IN THE FAIR COMPETITION TRIBUNAL

FCT FORM F
(Rule 18(3))

In the matter of an appeal No ..... of 20 .....
Between ..... Appellant(s)
And
.....
.....
.....Respondent(s)
(Appeal from the decision of ..... (the Commission/Regulatory Body)
In Order/ Determination/Decision No.....of 20 .....
Dated.....20.....

STATEMENT OF INTERVENTION

(Pursuant to the Order of the Tribunal dated .....20.....)

.....the Intervener(s) states that:

1. .....
2. ..... (etc)

It is proposed to ask the Tribunal for order/orders

.....
.....

List of documents annexed

1. .....
2. ..... (etc)

Signed: .... Intervener(s)

Lodged in the Registry of the Tribunal at ..... this ..... day of .... 20 ....

.....
Registrar

Copies to be served upon:

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Drawn and filed by:

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G.N. No. 219 (contd.)

FCT FOR
(Rule 5

In the matter of an appeal No. ..... of 2
Between ..... Appell
And
.....
.....
.....Respond
(Appeal from the decision of..... (the Commis
Regulatory Body)
In Order/ Determination/Decision No.....of 20
Dated.....20

MEMORANDUM OF REVIEW

..... applies to the Tribunal for review of its v
decision or part thereof delivered on .....20..... on the grounds th

1. .....
2. ..... (etc)

It is proposed to ask the Tribunal for order/orders
.....
.....
.....

Signed: .....

Lodged in the Registry of the Tribunal at ..... this ..... day of 2

.....
Registrar

Copies to be served upon:
.....
.....

Drawn and filed by:
.....
.....

Dar es Salaam,
5th June, 2012

RAZIABEGUM H. SHEI
Chairman, Fair Competition Tribu